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February 25, 2025

By: Pugh

An Act relating to school accreditation; amending 70 O.S. 2021, Section 3-104.4, which relates to standards of accreditation for public schools; directing standards to be adopted for accreditation of public school districts rather than public schools; directing standards to provide for deficiencies; providing for closure of school district that fails to receive or loses accreditation; directing evaluations of school districts to occur once every four years beginning in certain school year; removing language allowing the State Board of Education to interrupt certain evaluation schedule; modifying reasons for which a school district may be evaluated annually; providing for annual evaluation of school districts that receive one or more deficiencies beginning in certain school year; updating statutory language; updating statutory reference; providing an effective date; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 70 O.S. 2021, Section 3-104.4, is amended to read as follows:

Section 3-104.4. A. The State Board of Education shall adopt standards for the accreditation of the public ~~schools~~ school districts in this state according to the requirements of Section 3-104.3 et seq. of this title, to be effective as set forth in Section

1 3-104.3 et seq. of this title. The accreditation standards shall
2 incorporate the curricular standards established pursuant to Section
3 11-103.6 of this title. The accreditation standards shall equal or
4 exceed nationally recognized accreditation standards to the extent
5 that the standards are consistent with an academic results oriented
6 approach to accreditation. The accreditation standards adopted by
7 the ~~State~~ Board shall encompass accreditation for elementary
8 schools, middle schools, junior high schools, and high schools. The
9 accreditation standards shall be made available for public
10 inspection at the offices of the State Department of Education.

11 B. Standards for accreditation adopted by the State Board of
12 Education shall include standards relating to the provision of
13 school counselors to the public school children of this state. The
14 State Board of Education shall require each ~~local~~ school district to
15 provide information regarding the number of counselors serving each
16 school site, the duties of all such counselors including all
17 administrative duties, the number of students served by each
18 counselor, and information regarding the number of counselors
19 employed per elementary school, middle school, junior high school,
20 and high school.

21 C. Except as otherwise provided, ~~schools~~ school districts shall
22 meet the accreditation standards as a condition of continued
23 accreditation. Nothing herein shall be construed as preventing
24 changes to the adopted standards by the State Board of Education

1 pursuant to the Administrative Procedures Act. The accreditation
2 standards shall provide for deficiencies, warnings, probation, or
3 nonaccredited status for ~~schools~~ school districts that fail to meet
4 ~~the~~ one or more or all standards. The State Department of Education
5 shall investigate a complaint of failure to provide educational
6 services or failure to comply with accreditation standards within
7 thirty (30) days of receiving the complaint. If the Department
8 determines that a school district has failed to comply with the
9 accreditation standards, the Department shall report the recommended
10 deficiencies, warning, probation, or nonaccredited accreditation
11 status to the State Board of Education within ninety (90) days. If
12 a school district does not take action to comply with the
13 accreditation standards within ninety (90) days after a report is
14 filed by the Department, the Board shall withdraw accreditation for
15 the public school district. The State Board of Education's
16 accreditation ~~regulations~~ rules shall provide for warnings and for
17 assistance to ~~schools and~~ school districts whenever there is reason
18 to believe a school district is in danger of losing its state
19 accreditation.

20 D. If ~~one or more a school sites fail~~ district fails to receive
21 accreditation as required pursuant to this section or subsequently
22 ~~lose~~ loses accreditation, the State Board of Education shall close
23 the school district and reassign the students to accredited ~~schools~~
24 ~~within the district~~ school districts or shall annex the district to

1 one or more other districts in which the students can be educated ~~in~~
2 ~~accredited schools.~~

3 E. Standards for accreditation adopted by the State Board of
4 Education shall include standards relating to the provision of
5 educational services provided in partial hospitalization programs,
6 day treatment programs, day hospital programs, residential treatment
7 programs, and emergency shelter programs for persons between the
8 ages of three (3) and twenty-one (21) years ~~of age~~. The
9 accreditation standards shall apply to on-site and off-site
10 educational services provided by public school districts or state-
11 accredited private schools. Each school district which is providing
12 or is required to provide educational services for students placed
13 in a program as described in this subsection shall be actively
14 monitored by the State Department of Education. The Department
15 shall determine on an ongoing basis if the educational program and
16 services are in compliance with the accreditation standards.

17 F. The State Board of Education shall provide assistance to
18 districts in considering the possibility of meeting accreditation
19 requirements through the use of nontraditional means of instruction.
20 The ~~State~~ Board shall also assist districts in forming cooperatives
21 and making arrangements for the use of satellite instruction or
22 other instructional technologies to the extent that use of such
23 instructional means meets accreditation standards.

1 G. 1. Accreditation shall not be withdrawn from or denied nor
2 shall a penalty be assessed against a ~~school or~~ school district for
3 failing to meet the media materials and equipment standards, media
4 program expenditure standards, and media personnel standards as set
5 forth in the accreditation standards adopted by the Board.

6 2. The provisions of paragraph 1 of this subsection shall cease
7 to be effective during the fiscal year which begins on the July 1
8 immediately succeeding the legislative session during which the
9 measure appropriating monies to the State Board of Education for the
10 financial support of public schools is enacted as law and such
11 appropriation amount is at least Fifty Million Dollars
12 (\$50,000,000.00) greater than the amount of money appropriated to
13 the State Board of Education for the financial support of public
14 schools for the fiscal year ending June 30, 2019, pursuant to
15 Chapter 146, O.S.L. 2018. Provided, the Fifty Million Dollars
16 (\$50,000,000.00) shall not include any amount of appropriations
17 dedicated for support or certified employee salary increases.

18 Accreditation shall not be withdrawn from or denied nor shall a
19 penalty be assessed against a ~~school or~~ school district for failing
20 to meet the media personnel standards as set forth in accreditation
21 standards adopted by the Board.

22 H. 1. The State Board of Education shall not assess a
23 financial penalty against any school district which is given a
24

1 deficiency in accreditation status during any fiscal year as
2 provided for in this subsection.

3 2. Beginning with the fiscal year which begins July 1, 2021, if
4 the amount of money appropriated to the State Board of Education for
5 the financial support of public schools including funds apportioned
6 pursuant to ~~Section 2~~ Section 426 of ~~this act~~ Title 63 of the
7 Oklahoma Statutes, is at least One Hundred Million Dollars
8 (\$100,000,000.00) greater than the amount of money appropriated to
9 the State Board of Education for the financial support of public
10 schools for the fiscal year ending June 30, 2019, pursuant to
11 Chapter 146, O.S.L. 2018, a financial penalty shall be assessed
12 against any school districts that do not comply with the class size
13 limitations for kindergarten as provided for in Section 18-113.2 of
14 this title and class size limitations for grade one as provided for
15 in subsection A of Section 18-113.1 of this title. Provided, the
16 One Hundred Million Dollars (\$100,000,000.00) shall not include any
17 amount of appropriations dedicated for support or certified employee
18 salary increases.

19 3. The State Department of Education shall submit a report on
20 statewide classroom sizes to the President Pro Tempore of the
21 ~~Oklahoma State~~ Senate and the Speaker of the ~~Oklahoma~~ House of
22 Representatives no later than January 1, 2022.

23 I. Except as provided for in subsection J of this section,
24 beginning with the ~~2019-2020~~ 2025-2026 school year, evaluations of

1 ~~schools~~ school districts to determine whether they meet the
2 accreditation standards set forth in accordance with this section
3 shall occur once every four (4) years on a schedule adopted by the
4 State Board of Education. ~~The Board may interrupt the evaluation~~
5 ~~schedule provided in this subsection for reasons including a change~~
6 ~~in the superintendent of the school district; determination that one~~
7 ~~or more school district board members have not met the continuing~~
8 ~~education requirements as defined by this title; determination that~~
9 ~~the school district falsified information submitted to any public~~
10 ~~city, county, state or federal official or agency; initiation of an~~
11 ~~investigation by the Board or a law enforcement agency; or other~~
12 ~~determination by the Board that standards for accreditation are not~~
13 ~~being met by the school district. The schedule adopted by the Board~~
14 ~~shall allow for school districts receiving no deficiencies for two~~
15 ~~(2) consecutive years to be reviewed for accreditation less than~~
16 ~~annually.~~ Provided, however, that ~~schools~~ school districts shall be
17 evaluated annually for the purposes of:

- 18 1. Local, state, and federal funding;
- 19 2. Health and safety;
- 20 3. Certification requirements for teachers, principals, and
21 superintendents; and
- 22 4. School board governance, including instructional and
23 continuing education requirements for school board members; ~~and~~
- 24 5. ~~Any other requirements under state or federal law.~~

1 J. Beginning with the ~~2019-2020~~ 2025-2026 school year, if a
2 public school district receives ~~a deficiency~~ one or more
3 deficiencies on its accreditation report, the public school district
4 shall be evaluated annually to determine if it meets the
5 accreditation standards set forth in accordance with this section.
6 If the public school district receives no deficiencies for two (2)
7 consecutive years, the public school district shall be subject to
8 the evaluation timeline established in subsection I of this section.

9 SECTION 2. This act shall become effective July 1, 2025.

10 SECTION 3. It being immediately necessary for the preservation
11 of the public peace, health, or safety, an emergency is hereby
12 declared to exist, by reason whereof this act shall take effect and
13 be in full force from and after its passage and approval.

14 COMMITTEE REPORT BY: COMMITTEE ON EDUCATION
15 February 25, 2025 - DO PASS
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